State of Alabama Unified Judicial System Form SM-2 (front) Rev. 10/26	**STATEMENT OF CLAIM** **(Complaint)** **For Specific Property**	Case Number

IN THE SMALL CLAIMS COURT OF _____, **ALABAMA**
(Name of County)

_____ **v.** _____
Defendant

Plaintiff's
Home Address

_____

_____

Plaintiff's Attorney's
Address _____

_____

_____

Plaintiff's email address (if self-represented):

_____

Defendant's
Home Address _____

_____

_____

Additional
Defendant(s)
and Addresses _____

_____

_____

Notice to Plaintiff: If you are not represented by an attorney, court notices and orders may be sent electronically to the email address provided above in accordance with the Alabama Rules of Civil Procedure. If no email address is provided, notices and orders that are required to be served by the clerk or other parties may be sent by United States mail, which may result in slower delivery and delayed receipt of court communications. It is the filer's responsibility to promptly notify the clerk of any change in contact information.

NOTICE TO EACH DEFENDANT – READ CAREFULLY

YOU ARE BEING SUED IN THE SMALL CLAIMS COURT BY THE PLAINTIFF(S) SHOWN ABOVE. THE JUDGE HAS NOT YET MADE ANY DECISION IN THIS CASE, AND YOU HAVE THE RIGHT TO A TRIAL TO TELL YOUR SIDE.

HOWEVER, IF YOU, OR YOUR LAWYER, FAIL TO FILL OUT THE ENCLOSED ANSWER FORM AND DELIVER OR MAIL IT TO THE CLERK AT THE ADDRESS SHOWN BELOW, SO THAT IT WILL GET TO THE CLERK'S OFFICE WITHIN FOURTEEN (14) DAYS AFTER YOU RECEIVE THESE PAPERS, A JUDGMENT CAN BE TAKEN AGAINST YOU FOR THE MONEY OR PROPERTY DEMANDED IN THE FOLLOWING COMPLAINT, ONCE A JUDGMENT HAS BEEN ENTERED AGAINST YOU, YOUR PAYCHECK CAN BE GARNISHED AND/OR YOUR HOME OR PROPERTY SOLD TO SATISFY THAT JUDGMENT.

COMPLAINT

1. Plaintiff demands right to possession from the defendant(s) of the following property:

   _____

   _____

   _____

   _____

   Otherwise, plaintiff claims sum of $_____ from the defendant(s) as the alternate value of this property:

2. Plaintiff also claims from the defendant the sum of $ _____ for the use of this property from _____ to the present.

3. Plaintiff also claims from the defendant(s) court costs in the sum of $ _____ (see note below), and $_____ for lawyers' fees (only if plaintiff is represented by a licensed, practicing attorney and if the contract or note you signed so provides.)

   NOTE: The total amount of court costs may be more than this amount when the case is finally settled. The clerk will inform you of any additional costs at the close of the case.

CLERK'S ADDRESS:

_____
Plaintiff or Plaintiff's Attorney (Signature)

Attorney Code _____

Clerk's Phone No. _____

_____
Plaintiff's or Plaintiffs Attorney's Phone Number

(*See instructions on the Back)*

Date of Filing_____

Form SM-2 (back) Rev. 3/95	

INSTRUCTIONS TO THE PLAINTIFF'S

This is your case, and if you are acting as your own lawyer, you are responsible in seeing that your claim is successfully presented at each stage of the procedure until it is concluded.

The clerk of the court has a brochure which tells you how to handle a Small Claims case. This brochure is free to you on request..

1. You must complete one of these forms for each defendant you wish to sue. Each defendant must be described by his/her correct legal name and address (not a post office box). Be as brief as possible but include every important name, date and place
2. To start your case you must file the completed form with the clerk assigned to Small Claims cases. The clerk will stamp a copy for you to show that the case has been filed and will insert the number of the case on the front of this form.
3. You are responsible for seeing that each defendant receives a copy of this form. If you haven't heard from anyone about the case in about fourteen days, then check with the clerk's office, to make sure that each defendant has been served.
4. If any of the defendants ask for a trial you will be notified of the place, the date, and the time. You must be present or your case will be dismissed. You may take a judgment by default fourteen (14) days after the defendant has received a copy of this form, if the defendant fails to file his/her Answer.
5. You are responsible to see to the enforcement of any judgment that is awarded to you. The Small Claims brochure will tell you how to go about recovering your money. It is not the responsibility of the court or the clerk to collect the judgment for you.

ANY TIME YOU CONTACT THE CLERK ABOUT THIS CASE YOU MUST REFER TO THE CASE NUMBER ON THE FRONT.

INSTRUCTIONS TO SHERIFF OR PROCESS SERVER

To Any Sheriff or Any Person Authorized by Rule 4.1(b)(1) or 4.1(b)(2) of the Alabama Rules of Civil Procedure to Effect Service in the State of Alabama.

You are hereby commanded to serve this summons and a copy of the Statement of Claim in this action upon the defendant(s) named

_____

_____

and make proper return to this court.

Date _____ _____ By_____
Clerk

RETURN ON SERVICE:

Served on defendant(s) named _____

_____

by delivering a copy of the Summons and Statement of Claim to him/her in _____

County, Alabama, on (Date) _____,

_____
Process Server Signature

_____
Title of Process Server

This service by certified mail of this Summons and Statement of Claim is initiated upon the request of _____ pursuant to Rule 4.1.(c) of the Alabama Rules of Civil Procedure.

Date Requested _____ Date Mailed _____

Return Receipt Date _____ _____ By_____
Clerk